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ORDINANCE NO. 265

AN ORDINANCE ENTITLED AN ORDINANCE TO AMEND ORDINANCE NO. 245, OF THE ORDINANCES OF THE CITY OF RECTOR, ARKANSAS, "ENTITLED AN ORDINANCE TO PROHIBIT THE SETTING OF FIRES AND BURING COTTON HULLS, RUBBISH, TRASH, WASTE MATERIALS AND ALL OTHER REFUSE, IN THE CORPORATE LIMITS OF THE CITY OF RECTOR, ARKANSAS, AND DECLARING THE SPREADING OF SMOKE AND ASHES FROM SUCH FIRES TO BE A PUBLIC NUISANCE." AND FOR OTHER PURPOSES:

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

SEC. I. From and after the passage and approval of this Ordinance it shall be lawful for any person, firm or corporation, now operating, or that may hereafter be operating a Cotton Gin, in the corporate limits of the City of Rector, Arkansas, to install and use Smith Steel Incinerator approved equipment, or any other Incinerator approved equipment, of equal quality and effective, for burining Cotton Hulls, and other Cotton Refuse Materials, when equipped with a spark arrester, and a smoke stak, or other elevated smoke discharge, of a height of not less than Fifty (50) feet, above the ground level.

SEC. 2. That this ordinance shall not be construed to amend, or repeal, any other Section, or parts of Sections, of said Ordinance No. 245, except as hereinbefore specifically provided; nor shall Cotton Hulls, or other cotton Refuse Materials, be burned in any other way causing smoke, ashes, or sparks to spread in the corporate limits of the City of Rector, Arkansas.

SEC. 3. Any person, firm or corporation violating any of the provisions of this Ordinance shall be deemed quilty of a misdemeanor, and upon conviction thereof, shall be fined in any sum not less than Five Dollars nor more than Fifteen Dollars, and each day of such violation shall constitute a seperate offense.

SEC. 4. This Ordinance being necessary for the immediate preservation of the public peace, health and safety, an emergency is hereby declared to exist, and this Ordinance shall be in full force and effect from and after its passage and approval.

Passed and approved by the City Council of the City of Rector, Arkansas, on this the 7th day of August A.D. 1964.

W. H. Ashley
MAYOR

ATTEST:

Will L. Mayo
CITY RECORDER